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TENTATIVE RULING

July 15, 2026

23SMCV03790 (McKenzie v. Belzberg

Architects, APC, et. al.)

RELEVANT BACKGROUND

On August 14, 2023, plaintiff Chris McKenzie (Plaintiff) filed his complaint against defendants Tatum Construction, Inc. (Tatum), Belzberg Architects, APC (Belzberg), and Does 1-50, alleging general negligence and premises liability. Plaintiff filed his First Amended Complaint (FAC) on July 2, 2023. (UMF 1.) On May 3, 2024, Plaintiff filed an amendment to name California Access Scaffold, LLC (CAS) as a Doe defendant.

On October 11, 2023, Tatum filed a cross-complaint against Joes 1-25, asserting causes of action for equitable indemnity, partial indemnity, contribution, apportionment, and declaratory relief. Tatum amended its cross-complaint to include CAS as a Joe defendant on May 2, 2024. Tatum has alleged the following causes of action against CAS in its Cross-Complaint: (1) Equitable Indemnity, (2) Partial Indemnity, (3) Contribution, (4) Apportionment, and (5) Declaratory Relief.

On August 5, 2024, CAS filed a cross-complaint against Tatum.

On June 25, 2026,

Plaintiff's request for dismissal of Belzberg was entered.

On July 10, CAS filed a motion for determination of good faith settlement between CAS and Plaintiff.

Factual Background

The Subject Incident

occurred on September 6, 2021, at a construction site located at 2740 Main Street, Santa Monica, California 90405 (Subject Premises). (UMF 4.) Plaintiff alleges that, when he was walking on the sidewalk, he struck his head on screws located on a wood panel at the construction site. (Id.) Specifically, Plaintiff alleges that Defendants "allowed two screw like objects to protrude out of a construction site and remain on the subject premises, thereby causing Plaintiff to sustain injury after falling back into the screw like objects as a result of the condition. Additionally, Defendants failed to adequately inspect, maintain, repair, warn of and/or make their premises reasonably safe." (UMF 1; FAC at p. 5.)

Tatum, as the general

contractor that hired subcontractors such as CAS, had a contract with the owner of the Subject Premises regarding its construction work at the Subject Premises, which also covered the September 6, 2021 incident day. (UMF 5.) Tatum's responsibility as a general contractor required Tatum to be responsible for overall safety of the Subject Premises throughout the construction. (Id.)

CAS, as a subcontractor,

installed the pedestrian canopy system at the Subject Premises. (Id.) CAS installed plywood as part of that system and installed horizontal backing boards/planks behind the plywood. (Id.) The last day of CAS'S activity at the Subject Premises was on July 22, 2021. (UMF 6.) No CAS employee would be present at the Subject Premises unless CAS was called upon by Tatum to conduct specific construction, after which CAS would hand over the Subject Premises to Tatum who supervised the project as the general contractor. (UMF 7.) CAS'S work regarding the Subject Premises is described as follows: "CAS will install one rolling gate approx. 16' wide to allow a vehicle access into site. A scaffold bridge will be installed over at this location. ... 3/4" plywood will be installed on the back side of the ped canopy.", which did not involve any screw or similar object or require use of such material. (UMF 8.)

Subsequent to CAS'S work

and prior to the Subject Incident, Tatum installed an additional plywood on the second floor at the Subject Premises. (UMF 9.) Throughout the construction project at the Subject Premises, Tatum would have its employees at the Subject Premises, the number of which varied from three to fifteen as needed. (UMF 10.) Tatum would conduct general walk-throughs more than once a day, having authority to direct subcontractors, to control the sequencing of trades, to control access to the Subject Premises, and to stop work if there was an unsafe process. (UMF 11.) No subcontractor could overrule a stop-work directive that Tatum gave, and Tatum had the capability to require subcontractors to correct unsafe conditions Tatum was made aware of based on its authority to demand corrective action and to remove workers from the site for safety violations, whether those Tatum employees or a subcontractor's employees; and those enforcement powers existed because the general contractor Tatum was responsible for overall job site safety. (UMF 12.)

INSTANT MOTION

On April 15, 2026, CAS filed the instant motion for summary judgment. Tatum filed an opposition, and CAS filed a reply.

The Court notes that, although CAS'S motion for summary judgment addresses Plaintiff's complaint, Plaintiff has not filed an opposition, and the motion with respect to Plaintiff's complaint is moot due to the settlement between CAS and Plaintiff. Given this, the Court will not address CAS'S arguments concerning Plaintiff's complaint.

DISCUSSION

"To state a claim for equitable indemnity, a defendant must allege the same harm for which he may be held liable is properly attributable -- at least in part -- to the cross-defendant." (Platt v. Coldwell Banker Residential Real Estate Services (1990) 217 Cal.App.3d 1439, 1445, fn.) "A right of equitable indemnity can arise only if the prospective indemnitor and indemnitee are mutually liable to another person for the same injury." (Fremont Reorganizing Corp. v. Faigin (2011) 198 Cal.App.4th 1153, 1177; see also CACI 406, 3800 [elements of equitable indemnity: (1) indemnitor was negligent; and (2) indemnitor's negligence or tortious conduct contributed as a substantial factor in causing

Plaintiff's harm.].)

Code of Civil Procedure, section 875 provides, "Where a money judgment has been rendered jointly against two or more defendants in a tort action there shall be a right of contribution among them...[s]uch right of contribution may be enforced only after one tortfeasor has, by payment, discharged the joint judgment or has paid more than his pro rata share thereof. It shall be limited to the excess so paid over the pro rata share of the person so paying and in no event shall any tortfeasor be compelled to make contribution beyond his own pro rata share of the entire judgment...." (Code Civ. Proc., § 875, subd. (a), (c).)

"To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations." (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. (General of America Insurance Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.) "The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief" (California Insurance Guarantee Association v. Superior Court (1991) 231 Cal.App.3d 1617, 1624), and a duplicative cause of action is subject to demurrer (Palm Springs Villas II Homeowners Association, Inc. v. Parth (2016) 248 Cal.App.4th 268, 290). Further, "there is no basis for declaratory relief where only past wrongs are involved." (Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 366, quotation marks omitted.)

Here, CAS argues that each cause of action alleged against CAS fails because no triable issue of material fact exists on the issue of causation. CAS argues that it had no involvement in the alleged dangerous condition and did not have any knowledge of the screws that allegedly injured Plaintiff. (UMF 6- 8, 13.) CAS states that it had already handed over the Subject Premises to Tatum and removed its employees prior to the Subject Incident, as CAS'S last work done at the Subject Premises prior to the Subject Incident was on July 22, 2021, when CAS

handed over the project to Tatum. (UMF 6.) Moreover, CAS highlights that CAS'S scope of work at the Subject Premises did not involve any screw or similar object or require that it use of such materials. (UMF 8.) Additionally, CAS states that Tatum's responsibility as a general contractor required Tatum to be responsible for overall safety of the Subject Premises throughout the construction, which duty is not imputed to CAS because there is no causal link between CAS'S conduct and the damages claimed by Plaintiff. (UMF 5.)

Tatum

opposes CAS'S motion for summary judgment on the following grounds:

1.

There are triable issues of fact as to whether CAS created, contributed to, or failed to detect the alleged dangerous condition because CAS installed the pedestrian canopy, plywood, horizontal backing boards/planks, and related fastener system at the subject location.

2.

There are triable issues of fact as to CAS'Ss claimed safe completion and inspection of its work because CAS has not produced a preserved green tag, OSHA inspection document, or written safety inspection checklist for the subject canopy/plywood system.

3.

There are triable issues of fact as to CAS'Ss claimed July 22, 2021 cutoff because CAS'Ss PMK testified that CAS personnel may go to a jobsite without creating a work slip or daily ticket.

4.

CAS cannot establish the absence of causation or comparative fault because CAS cannot identify who installed the subject screws, when they were installed, or any Tatum employee who installed them.

In

support, Tatum points to CAS'S bid and the deposition testimony of CAS'S PMK, Daniel Johnson. Tatum contends that CAS'Ss bid confirms its scope included pedestrian protection, a code-compliant sidewalk canopy, a rolling gate, a scaffold bridge, and installation of 3/4-inch plywood on the back side of the pedestrian canopy. Additionally, Johnson testified CAS installed horizontal backing boards/planks behind the plywood and nailed the plywood to those backing boards

using 16-penny nails. He further testified the nails were supposed to be driven through and bent back on the building side. CAS notes that Johnson was not personally present for the work and did not personally inspect the plywood or backing boards before installation.

In

addition, Tatum argues that CAS'Ss inspection evidence is incomplete because Johnson testified CAS did not save the green tag, he did not know who green-tagged the canopy, and it was now impossible to tell. He testified that OSHA did not inspect CAS'Ss work, there was no written safety inspection checklist in the job file, and he did not know whether such a checklist was created and lost or never created. But the Court is not persuaded by this argument because the absence of an inspection document does not establish that CAS created the alleged dangerous condition. Nor does Tatum point to any specific testimony from Johnson's deposition to support their contention that CAS caused or contributed to the Subject Incident.

Lastly,

Tatum argues that CAS'Ss claimed July 22 cutoff is not conclusive because Johnson admitted CAS personnel may go to a jobsite without creating a work slip and that work tickets are generated when a crew goes because the crew is paid from those tickets. He also testified the safety coordinator may drive by jobsites and take photographs when in the neighborhood. Thus, Tatum concludes that the absence of a work ticket after July 22 does not conclusively prove no CAS representative returned, inspected, photographed, or observed the condition before the incident. But Tatum fails to provide any evidence in opposition to show that this was the case or an explanation as to how this would create a causal connection between CAS'Ss conduct and the Incident.

In

reply, CAS argues that CAS'S arguments ignore the undisputed facts that this action is based on Plaintiff's allegation that two screw-like objects protruding from wood at the Subject Premises caused his injuries and that CAS'S scope of work at the Subject Premises did not involve any screw or similar object. (UMF 8.) CAS points out that Tatum fails to identify any evidence establishing that CAS installed the screws or the wood containing those screws. (Id.)

The

Court finds that CAS has met its burden as the moving party by showing that there

is no causal link between CAS'S conduct and the alleged dangerous condition at the Subject Premises. (See UMF 6- 8, 13; PMK depo, Ex. 7 at p. 52, 106-107, 117-120; Daily Tickets, Ex. 8 at pp. 108-110; Signed Bid, Ex. 6; Photos Post-CAS Construction, Ex. 9; Photos of Tatum's Second Floor Construction, Ex. 10, Plaintiff's depo, Ex. 11; Plaintiff's Responses to CAS'S Special Interrogatories, Ex. 12; Tatum's Responses to CAS'S Special Interrogatories, Ex. 13.)

Specifically,

CAS has shown that CAS'S scope of work at the Subject Premises did not involve any screw or similar object. (UMF 8.) Additionally, CAS has shown that it handed over the Subject Premises to Tatum and removed its employees prior to the Subject Incident, as CAS'S last work done at the Subject Premises prior to the Subject Incident was on July 22, 2021. (UMF 6.)

Lastly, CAS has shown that Tatum's responsibility as a general contractor required Tatum to be responsible for overall safety of the Subject Premises throughout the construction. (UMF 5.)

The

Court further finds that Tatum has failed to meet its responsive burden to raise a triable issue of material fact. Tatum has not presented any evidence on which the trier of fact could reasonably rely to find that the alleged dangerous condition at the Subject Premises was caused by CAS or that CAS'S conduct was a substantial factor in causing Plaintiff's harm. The Court agrees with CAS that Tatum's reliance on CAS'S general involvement in constructing the pedestrian canopy does not create a triable issue regarding CAS'S liability. Tatum failed to present any evidence establishing that CAS installed the screws or the wood containing those screws. Nor has Tatum presented any other evidence connecting CAS to creation of the alleged dangerous condition.

Accordingly, CAS'S motion for summary judgment is GRANTED.